



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

June 1, 2023

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202107674 (Incident Date: December 1, 2021) regarding Police Officer Nathaniel Marcellus, Tax No. 968601 (DADS No. 2023-27895)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that the actions undertaken by Police Officer Marcellus do not rise to the level of actionable misconduct. Police Officer Marcellus responded to a residence where a female perpetrator assaulted her elderly mother and damaged her mother's property. The female perpetrator was then located inside of a basement residence. The female was nude and Police Officer Marcellus, together with his partner, provided the female with a towel. Police Officer Marcellus then proceeded to look through a clothes hamper and some closet drawers in order to locate clothes for the female perpetrator.

Police Officer Marcellus' Body-Worn Camera captured the underlying event and shows that at no time was the search intended to locate any possible contraband; instead, the sole purpose of the search was to locate clothing for the female. By conducting the search, Police Officer Marcellus merely wanted to ensure that the female perpetrator's privacy was protected and that said perpetrator was not removed to a precinct wearing nothing but a towel on a cold December evening.

Therefore, based on the foregoing, Police Officer Marcellus will receive no disciplinary action for the alleged violation of Patrol Guide Procedure 304-06 (1) (Prohibited Conduct/Wrongful Search).

Yours truly,

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office

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